

26STCV05174 26STCV05174

County: los-angeles

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Case Number: 26STCV05174 Hearing Date: June 26, 2026 Dept: 507

Tentative

Ruling

Judge Nicholas

F. Daum, Department 507

HEARING

DATE: June 26, 2026 TRIAL DATE: NOT SET

CASE: City of Inglewood v. Inglewood Center,
L.P., et al.

CASE

NO.: 26STCV05174

MOTION FOR PREJUDGMENT

POSSESSION

MOVING

PARTY: Plaintiff City of Inglewood

RESPONDING

PARTY(S): Defendants

Nina Wong, EM Art, Inc. d/b/a Inglewood Beauty Salon and Inglewood Beauty
Supply & Wig, and Advance America, Cash Advance Centers of California, LLC.

TENTATIVE RULING:

The

City of Inglewood's Motion for Prejudgment Possession is GRANTED.

Moving Party to give notice.

BACKGROUND

This

is an eminent domain action. The City of Inglewood seeks to acquire the real properties located at 236 and 240 North Market Street in Inglewood, California to construct a Mobility Hub for the Inglewood Transit Connector Project.

DISCUSSION:

The City of Inglewood moves for prejudgment possession pursuant to Code of Civil Procedure section 1255.410. The Court grants the motion.

Legal

Standard

A municipal entity that is a plaintiff in an eminent domain action may, at the time of filing the complaint or any time thereafter prior to entry of judgment, move for an order for possession of the property at issue. (Code Civ. Proc. § 1255.410(a).) The motion must describe the property sought to be possessed, must state the date after which the plaintiff seeks possession, and contain a written notice of the form specified in the statute. (Id.) The motion must be served on the owner and occupants, and must be set for hearing not less than 60 days after service of the notice of motion. (Id. subd.(b).) Any defendant, owner, or occupant may oppose the motion not later than 30 days after service of the motion. The plaintiff may reply to any opposition no later than 15 days before the hearing. (Id. subd.(c).)

Where the motion is timely opposed, the Court may order possession if it finds that (A) the plaintiff is entitled to take the property by eminent domain; (B) the plaintiff has deposited an amount satisfying the requirements of section 1255.010 et seq of the Code of Civil Procedure; (C) there is an overriding need for the plaintiff to possess the property before final judgment and the plaintiff will suffer a

substantial hardship if the application is denied or limited; and (D) the hardship that the plaintiff will suffer outweighs any hardship on the defendant or occupant that would be caused by granting the order. (Code Civ. Proc. § 1255.410(d)(2).)

Entitlement and Appraisal

The City has demonstrated that it is entitled to exercise the power of eminent domain and has deposited compensation for the appraised value of the property.

On February 10, 2026, the City of Inglewood's City Council adopted Resolution No. 26-44, which declared, as relevant here, that:

(a) [the] City is a charter city and municipal corporation.

(b) The public interest and necessity require the proposed public transportation project, namely the Inglewood Transit Connector Project, a public use, which includes the development, construction, operation, and maintenance of the mobility hub on the Subject Property ("Project").

(c) The proposed Project is located in the manner that will be most compatible with the greatest public good and the least private injury.

(d) The Subject Property sought to be acquired [...] is necessary for the proposed Project.

(e) The offer required by Government Code section 7267.2 has been made to the Owner(s) of the Subject Property.

(f) Environmental review consistent with the California Environmental Quality Act (CEQA) for the Project has been previously certified by the City Council. Specifically, on April 12, 2022, the City Council adopted the Final Environmental Impact Report, and on

April 23, 2025, a Notice of Determination for Phase 1 of the Project, which includes implementation of mobility hubs at key station locations, was received and posted by the Los Angeles County Clerk. The acquisition and, therefore, the requisite environmental review of the Project and the acquisition of the Subject Property have been completed in accordance with CEQA

(g) The offer required by

Government Code section 7267.2, subdivision (a), together with the accompanying statement and summary of the basis for the amount established as just compensation, was made to the Owner(s) and was in a form and contained all of the factual information required by Government Code section 7267.2, subdivision (a)

(h) The notice of intention to

adopt the Resolution was given by first class mail to the person whose property is to be acquired by eminent domain, in accordance with Code of Civil Procedure section 1245.235;

(i) Pursuant to Code of Civil

Procedure sections 1240.610 and 1240.510, to the extent that the Property is already devoted to a public use, the use to which the Subject Property is to be acquired is a more necessary public use than the use to which the Subject Property is already devoted, or, in alternative, is a compatible public use which will not unreasonably interfere with or impair the continuance of the public use to which the Property is already devoted.

(See

Complaint Exh. 3.) The adoption of this resolution conclusively establishes that the public interest and necessity require the project, that the project is planned or located in the manner that will be most compatible with the greatest public good and least private injury, and that the property sought to be acquired is necessary for the project. (Gov. Code §§ 1245.250(a); 1240.030 [entitlement to exercise power of eminent domain].) The City is therefore conclusively entitled to exercise the power of eminent domain over the property, and none of the opposing Defendants dispute this finding in their opposition.

The City has also served and filed a

Notice of Deposit stating that it has deposited compensation for the subject property in the amount of \$6,352,000.00 with the State Treasurer. (Notice of Deposit filed March 10, 2026; see also Summary of Basis for Appraisal Opinion).)

Overriding

Need and Hardship to City

The City has also demonstrated that it has an overriding need to possess the subject property before final judgment and that it will suffer a substantial hardship if the application is denied.

The City has presented a declaration from engineer Sanjeev Shah, CEO of Simply Strategic Inc, who states that he has been involved in the planning, development, management and implementation of the Inglewood Transit Connector Project. (Declaration of Sanjeev Shah ISO Mot. ¶¶ 1-2.) Shah is responsible for reviewing the designs and plans for the project, overseeing bids and selection process for contractors, assessing scheduling, and obtaining funding. (¶ 3.)

Based

on his experience and personal involvement with the project, Shah states that the City is acquiring the property located at 240 N. Market Street, Inglewood, CA to be redeveloped into a “Mobility Hub” to connect bus services, passenger mobility and transit services, a pedestrian bridge to the K Line, and neighboring parking structures for the 2028 Olympic and Paralympic Games, while preserving space for the implementation of an automated people mover in a future phase of the project. (¶ 8.) Shah states that the City cannot proceed with construction until it is in possession of all of the properties, because possession of the properties is a prerequisite to the required “right-of-way” certification. (¶ 11.) Shah also declares that the City must turn over the property to its contractors no later than October 21, 2026 to remain on schedule and maintain compliance with necessary grant funding for the project. (¶¶ 12-14.) Shah states that if the City is delayed in taking possession of the property, the resulting delays will cause the City to incur additional mobilization and demobilization fees for construction workers, expose the City to construction delay claims, jeopardize the Project’s funding, and would endanger the timely completion of the project. (¶¶ 18-20.)

Defendants

argue in opposition that the Shah declaration is deficient because it relies purely on Shah’s own statements and not any supporting documentation. The Court disagrees. Almost all of Shah’s testimony is grounded in his personal knowledge of the relevant facts due to his involvement with the Project. No documentary evidence is required for him

to speak as to his own knowledge. (Evid. Code § 800.) Further, to the extent his testimony is grounded in technical matters beyond common experience, he is entitled to offer opinion based on his special knowledge, skill, experience, training, and education, and his personal involvement. (See Evid. Code § 801.) Defendants' assertions to the contrary are not persuasive. Nor do their cited authorities detract from this conclusion, as none of the opinions offered concern expert testimony based on a witness's personal involvement with the underlying facts. (See *Kelley v. Trunk* (1998) 66 Cal.App.4th 519, 523-24; *Bushling v. Fremont Medical Center* (2004) 117 Cal.App.4th 493, 510.)

The

City has offered competent, admissible evidence demonstrating that it has an overriding need to possess the property before final judgment and will suffer a substantial hardship if the motion is denied.

Balance
of Hardships

Advance America and EM Art argue that their claimed hardships outweigh the hardship which the City would suffer. The Court is not persuaded that the threat of disruption to their respective businesses outweighs the hardship to the City from the disruption of the Project. Wong does not oppose the motion on a balance-of-hardships basis.

Advance America contends that, although it has leased a replacement site to maintain its business, it has not yet obtained a Special Use Permit for the premises. (Declaration of William Lancaster ISO Opp. ¶¶ 6-9.) Advance America estimates that another one to two months will be required to complete buildout of the new premises once the permit is obtained. (¶ 10). Advance America contends that if it is displaced before the process is completed, it will be forced to suspend operations, costing it customer goodwill and revenue and forcing it to lay off employees. (¶ 11.) EM Art offers similar contentions, stating that it has not yet been able to secure a replacement site because of the substantial plumbing and electrical infrastructure that is required to maintain its business (a hair salon). (Declaration of Sam Hyun Chung ISO Opp. ¶¶ 3-5.) EM Art states that if the motion is granted, it will have to place its equipment into storage, and that this will cause EM Art to lose customers and income. (¶¶ 7-8.)

Although the Court empathizes with

these Defendants, their potential hardships, while significant, do not outweigh the risk to the City and to public infrastructure if the Project is halted. The needs of an individual business—or two, in this case—do not overcome the needs of their City as a whole to develop its central transit infrastructure, particularly where major international gatherings will require significant transit improvements in the coming years.

Put

more directly, construction delay is, by itself, harm to public infrastructure. Each day the public cannot benefit from useful transit is a loss to the public. Substantial delay in the construction of this transit project is substantial public harm. While the Court sympathizes with the interests of the Defendants here, the relevant test requires the Court to balance the generalized interest of the public against the particularized property interests of private individuals. Here, the need of both Inglewood and visitors to Inglewood for appropriate transit outweighs the harm to Defendants' private interests. The Court therefore grants the motion.

Defendants'

Evidentiary Objections

Defendants submit identical evidentiary objections to the Declaration of Sanjeev Shah in support of the motion. The Court rules as follows:

No. 1: OVERRULED. Does not lack foundation or personal knowledge, not vague, not a legal conclusion.

Nos 2-3: OVERRULED. Does not lack foundation, not hearsay, not improper opinion. Best evidence and authentication not applicable.

Nos. 4-6: OVERRULED. Does not lack foundation, not improper opinion, speculation, or argument.

No. 7: OVERRULED. Facially relevant, does not lack foundation. Not unduly prejudicial.

Nos. 8-9: OVERRULED. Does not lack foundation, personal knowledge. Best evidence not applicable. Not hearsay.

No. 10: OVERRULED. Does not lack foundation, not hearsay, not improper opinion. Best evidence and authentication not applicable.

No. 11: OVERRULED. Does not lack foundation, not speculative.

No. 12: : OVERRULED. Does not lack foundation, not hearsay. Best evidence and authentication not applicable.

No. 13: OVERRULED. Does not lack foundation, not improper opinion, speculation, or hearsay. Best evidence not applicable.

No.
14: OVERRULED.
Does not lack foundation or personal knowledge, not a legal conclusion.

No.
15: OVERRULED.
Does not lack foundation or personal knowledge, not hearsay or a legal conclusion.

No
16: OVERRULED.
Does not lack foundation, not hearsay, not improper opinion.

No.
17: OVERRULED.
Does not lack foundation. Not hearsay or speculation. Best evidence and authentication not applicable.

No.
18: OVERRULED.
Does not lack foundation or personal knowledge. Not hearsay, speculation, improper opinion, or argument. Does not risk undue prejudice. Best evidence and authentication not applicable.

No.
19: OVERRULED.

Does not lack foundation or personal knowledge. Not speculation, improper opinion, or argument. Does not risk undue prejudice.

No.

20: OVERRULED.

Does not lack foundation or personal knowledge. Not hearsay. Best evidence and authentication not applicable.

No.

21: OVERRULED.

Does not lack foundation or personal knowledge. Not speculation, improper opinion, argument, or legal conclusion.

City's

Evidentiary Objections

The City objects to the Declaration of Sam Hyun Chung in support of EM Art's opposition to the motion. The Court rules on these objections as follows:

No. 1: OVERRULED. Does not lack foundation, not a conclusion, not vague or argumentative.

No. 2: OVERRULED. Does not lack foundation, not a conclusion, not vague.

No.

3-5: OVERRULED.

Does not lack foundation, not a conclusion, not vague or argumentative.

No.

6: OVERRULED.

Does not lack foundation, not a conclusion, not vague.

No.

7-9: OVERRULED.

Does not lack foundation, not a conclusion, not vague or argumentative.

No. 10: OVERRULED. Does not lack foundation, not speculative, conclusory, or argumentative.

Reply Evidence

The City attempts to bolster its reply papers by supplementing them with a declaration addressing the City's assistance in the relocation of EM Art and Advance America. These Defendants object to the consideration of that declaration as improper reply evidence. The Court disagrees. The reply declarations respond directly and precisely to evidentiary issues raised by Defendants in opposition. Accordingly, Defendants' objection to the reply evidence is **OVERRULED**.

CONCLUSION:

Accordingly, The City of Inglewood's Motion for Prejudgment Possession is **GRANTED**.

Moving Party to give notice.

IT IS
SO ORDERED.

Dated: June 26, 2026 _____

Nicholas
F. Daum

Judge
of the Superior Court

Any party may submit on the tentative ruling by contacting the courtroom via email at by no later than 4:00 p.m. the day before the hearing. All interested parties must be copied on the email. It should be noted that if you submit on a tentative ruling the court will still conduct a hearing if any party appears. By submitting on the tentative you have, in essence, waived your right to be present at the hearing, and you should be aware that the court may not adopt the tentative, and may issue an order which modifies the tentative ruling in whole or in part.